TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234.** If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc*. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 **(NOT N6- Please no reserving/filing of motions in N6)** conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at https://www.occourts.org/media-relations/civil.html, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: Privately-Retained Court Reporter Policy.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS

Date: February 26, 2026

#	Case Name	Tentative
1 & 2	**30-2024-01393434** **Kaufman vs. Kaufman** **&** **25-01506656** **Martinez vs. Kaufman**	**1. Case Management Conference** **2. Motion for Leave to File Amended Complaint** **(Related Case on calendar for CMC-Martinez vs. Kaufman)** Plaintiff Leah Michele Kaufman's unopposed motion for leave to file a First Amended Complaint ("FAC") is **GRANTED**. (Code of Civ. Proc §§ 473(a)(1), 576; Rules of Court, Rule 3.1324.) Plaintiff's motion and supporting declaration, together with the proposed FAC, comply with the requirements needed for leave to amend the Complaint and no prejudice has been shown. Based upon the lack of prejudice and the fact that courts are to show great liberality in allowing amendments, the instant motion is GRANTED. Plaintiff to **file the proposed First Amended Complaint, within 15 days without any changes or alterations.** Plaintiff must *still follow appropriate procedure for appointment of a guardian ad litem for minor plaintiff.* **Plaintiff to give notice**.
3.	**30-2024-01447336** **Valdez vs. Serrano**	**1. Motion to Be Relieved as Counsel of Record** The unopposed motion of attorney Kevin Sandercock of Sandercock and Associates to be relieved as counsel for Plaintiff Ramon Antonio Valdez is **CONTINUED**. The Court previously continued the hearing on this motion because Moving Attorney did not file a proof of service for the **Mandatory Proposed Order MC-053**. (This specific form was called out in this court's last minute order- ROA #44). Moving Attorney filed a proof of service for both the Mandatory Notice form MC051 and Mandatory Declaration Form MC-052 – but still not the Mandatory Proposed Order MC-053. As Moving Attorney has once again failed to file a proof of service of the Mandatory Proposed Order MC-053, the hearing on the Motion is **CONTINUED** once more to **March 26, 2026 at 1:30 in C34**. (*See* Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1362, subd. (d).) Moving Attorney **shall file proof of service of the Mandatory Proposed Order MC-053** no later than **<u>16 court days before the continued hearing</u>**. If Moving Attorney does not file proof of service of the Mandatory Proposed Order MC-053 before the continued hearing, the motion will be denied.

		Once proper service of the Mandatory Proposed Order MC-053 is established, the Court is inclined to grant the motion. **Moving Attorney to give notice of the continued hearing.**
4.	**30-2025-01475801** **Mercury Insurance Company vs. Cabral**	**1. Motion to Set Aside/Vacate Default and Judgment** Defendant, Aracely Leon-Cabral "ESA Aracely Leon Cabral" ("Leon-Cabral"), in pro per, moves for an order setting aside the entry of default and/or default judgment entered against Defendant on August 21, 2025. The Court's file does not clearly reflect that Plaintiff received notice of the January 29, 2026 Minute Order, and of February 26, 2026, continued hearing date. Accordingly, **there is no tentative ruling at this time.** If Plaintiff did *not* get notice, the court will Continue the matter to a later date.
6.	**30-2024-01431381** **Hart vs. Pacific Specialty Insurance Company**	**1. Motion to Compel Production** Plaintiff, Rory Hart ("Plaintiff" or "Hart"), moves for an order compelling Defendant, Pacific Specialty Insurance Company ("PSIC"), to provide further responses and to produce documents responsive to Plaintiff's Request for Production of Documents, Set One, as well as imposing monetary sanctions in the amount of $16,900 against Defendant, PSIC. The Motion to Compel is **CONTINUED** to **April 29, 2026 at 1:30 p.m**. **in Dept. C34.** There is insufficient evidence before the Court to establish that the instant motion to compel was timely made. Plaintiff is **ORDERED to file and serve supplemental evidence to establishes that the motion was timely made**. Said supplemental evidence to be filed and served no later than nine (9) court days before the continued hearing date. No other briefing on this issue is authorized. In addition, the **parties have not engaged in adequate attempts to meet and confer** regarding the requests for production at issue. The meet and confer requirement is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order….This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial Western Agency, Inc*. (2001) 87 Cal. App. 4th 1006, 1016, quoting *Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435 [internal quotations and citations omitted].) "A single letter, followed by a response which refuses concessions, might in some instances be an adequate attempt at informal resolution, especially when a legitimate discovery objection is demonstrated. The time available before the motion filing deadline, and the extent to which the responding party was complicit in the lapse of available time, can also be relevant. An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances . . . , the level of effort that

is reasonable is different in different circumstances, and may vary with the prospects for success." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) "The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant." (*Id*. at p. 431.) There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

Here, at issue are RFP, Nos. 51-52 (the reserves set on the claim); RFP, Nos. 15-26 (training manuals, materials and guidelines); RFP, Nos. 27-30 (performance/job review/evaluations and goals for Chelsea Renfree, the adjuster handling Plaintiff's claim and goals for job performance of first-party homeowners' property claims adjusters).

Plaintiff's attempt to meet and confer consists of a single written letter dated September 22, 2025, which argues that the 18 requests at issue, i.e., RFP, Nos. 15-26, 27-30, and 51-52, seek relevant information, and that PSIC's objections are "inappropriate, boilerplate objections" and lack merit. (Ex. 2 to Spurley Decl.; Ex. B to Kelley Decl.) In conclusion, Plaintiff states there is no legal basis for PSIC's failure to respond, and demands that PSIC supplement the responses, and that if Plaintiff's counsel does not hear from PSIC by September 26, 2025, Plaintiff will have no choice but to compel further responses. (*Ibid.*)

PSIC's counsel sent a written response dated October 2, 2025, which corrects Plaintiff's assertions that no documents or privilege have been produced, and explains the basis for PSIC's objections. (Ex. 2 to Spurley Decl.; Ex. C to Kelley Decl.) It concludes, in part: "We appreciate your understanding and cooperating in meeting and conferring regarding these discovery issues and look forward to further discussion." (*Ibid.*) Plaintiff's counsel made no additional attempts to discuss the issues concerning the subject RFPs and filed the instant motion on October 6, 2025. (Kelley Decl., ¶ 8.)

Based on the foregoing, the single letter from Plaintiff's counsel and response letter from PSIC's counsel does not demonstrate a reasonable and good faith attempt at informal resolution of each issue presented by the motion. The correspondence does not reflect any effort at informal negotiation. "Argument is not the same as informal negotiation." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1437.) For example, neither party suggested or offered production of documents to the RFPs at issue subject to a protective order.

Additional efforts also appear likely to bear fruit. The opposition provides that PSIC has elected to provide a further response to RFP, Nos. 51-52, which concern documents concerning "reserve amounts" in connection with Plaintiff's claim. (Opposition, 4:15-21.) While the reply asserts that no further responses to these requests have been served, it appears that PSIC would agree to provide further responses to these requests.

Consequently, as detailed below, **the parties are ORDERED to further meet and confer with regards to the discovery at issue in this motion and to file a Joint Statement.**

The parties are ordered to meet and confer for the purpose of attempting a reasonable and good faith attempt at informal resolution of each request at issue. Meet and confer efforts shall be made by lead counsel for both parties by telephone or videoconference, not by mail or email, except as confirmation of conversations, **within 10 days**.

		If PSIC agrees to provide further responses or produce additional documents as to any request, PSIC shall provide verified further responses and produce such documents **within 30 days of the agreement to produce** further responses and documents. The **parties shall file a Joint Statement** only on issues on which they cannot reach resolution through meeting and conferring. The Joint Statement shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) briefly state why the parties were unable to resolve the dispute. The **Joint Statement must be filed and served no later than 9 court days before the continued hearing date**. If a Joint Statement is not filed by that date, the Motion will be placed off-calendar No additional briefing is authorized or will be considered. **The Court orders Moving Party to give notice.**
9.	**30-2024-01442544** **Roper vs. Gonzalez**	**1. Motion to Compel Further Responses to Form Interrogatories** **2. Motion to Compel Further Responses to Special Interrogatories** **3. Motion to Compel Response to Requests for Admissions** Plaintiff Jamel Roper ("Plaintiff") moves for an order compelling defendant Jose Sandoval Gonzalez ("Defendant") to serve further responses Plaintiff's to Requests for Admissions, Special Interrogatories, and Form Interrogatories, Set One and imposing monetary sanctions in the total amount of $6,000.00. Defendant's Oppositions assert that amended responses have been served to the interrogatories and requests at issue. Thus, the Motions to Compel Further responses are **DENIED as MOOT.** Plaintiff contends that even though amended responses have now been served, sanctions are still warranted because Defendant promised that amended responses would be served long ago but failed to serve them until after these Motions were filed without any explanation for the delay. Plaintiff asserts that Defendant's conduct constitutes willful violation of the discovery process. Plaintiff's request for monetary sanctions against Defendant and his counsel are DENIED. Code of Civil Procedure, Section 2031.310(h) provides that: Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with *substantial justification or that other circumstances make the imposition of the sanction unjust*. Here, a bona fide discovery dispute existed regarding the discovery responses at issue. In addition, new counsel for Defendant recently came into the case and appears to be engaging in correspondence with Plaintiff's counsel in order to rapidly resolve discovery issues in this case.

		Plaintiff to give notice.
10.	**30-2025-01490401** **Potts vs. Moen Incorporated**	**1. Motion to Dismiss Or Compel Arbitration** Defendants Moen Incorporated and Fortune Brands Innovations Group, Inc. ("Defendants") move for an order dismissing this action or, alternatively, compelling plaintiffs Ya-Li Potts and David Potts ("Plaintiffs") to arbitrate all claims and staying this action pending completion of arbitration. Plaintiffs' evidentiary objections are **OVERRULED** in their entirety. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.2.) "The trial court may resolve motions to compel arbitration in summary proceedings, in which '[t]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.'" (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 683.) " 'Under "both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." ' " (*Long v. Provide Commerce, Inc*. (2016) Cal.App.4th 855, 861.) " '[G]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.' " (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) " 'Mutual assent, or consent, of the parties "is essential to the existence of a contract" [citations], and "[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense" [citation]. "Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings." ' " (*B.D. v. Blizzard Entertainment, Inc*. (2022) 76 Cal.App.5th 931, 943.) This action arises out of property damage, which Plaintiffs allege was caused by Defendants' defective FLO products. Defendants argue that Plaintiffs were required to download a mobile application to use with the FLO products and had to agree to the terms of use before they could use the application. Defendants contend that Plaintiffs' use of the application on their phone and entering in their information and email address, Plaintiffs assented to the terms of use. Laura Kelbley, a Customer Claims Manager at Fortune Brands Innovations, states that she searched through the contact settings in the FLO application and determined that the application was used by the phone number 949-254-0210 and associated with the email address david@pottsland.com. (Declaration of Laura Kelbley ¶ 3.) She further states that

the application contains terms of service which users must agree to before they can use the application. (*Id*. ¶ 4.)

David Potts states that the FLO product was installed at his home by a licensed plumber and the plumber also installed an independent application on his cell phone. (Declaration of David Potts ¶ 3.) He was never aware that installation of the application required him to arbitrate claims against Defendants and the application never directed him to or required him to execute or acknowledge the arbitration agreement. (*Id*. ¶ 4.) The application was never installed on Ya-Li Potts' phone and she never created an independent account. (Declaration of Ya-Li Potts ¶ 4.)

"[W]hen transactions occur electronically, as here, 'the consumer is not typically provided a physical copy of the contractual terms. In that context, and in the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions . . . including, for example, checking boxes and clicking buttons—but any such action must indicate the parties' assent to the *same thing* which occurs only when . . . the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button.' " (*Doe v. Massage Envy Franchising, LLC* (2022) 87 Cal.App.5th 23, 31.) In evaluating the sufficiency of notice, the Court must evaluate "the full context of the transaction." (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 477.)

Here, the Kelbley Declaration falls short of demonstrating that Plaintiffs had actual notice of the terms. Thus, Defendants must "establish contract formation on a constructive or inquiry notice theory." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1296.) This requires a showing that Plaintiffs were provided "with reasonably conspicuous notice of the existence of the terms to which they were to be bound." (*Ibid*.) Here, however, Defendants have failed to present any evidence as to the conspicuousness of the notice provided. There is no evidence showing how the terms were presented to users of the FLO products when the application was downloaded onto Mr. Potts' phone, such as whether they were presented on a separate pop-up window, the size or color of front used, or if they were presented when the application itself was downloaded or when an account was created. Defendants provide no information as to whether a checkbox had to be clicked or a button had to be pressed before the application could be used. They also provide no information as to whether the entirety of the terms were presented on a screen that could be scrolled by a user or whether the terms were presented on a separate hyperlinked website. Without this vital information, the Court cannot assess whether there was constructive or inquiry notice as to the terms. Therefore, Defendants have failed to carry their burden as the moving parties.

Because Defendants have failed to carry their burden to show Plaintiffs' manifestation of assent to the terms, the Court need not address the parties' arguments concerning unconscionability. Accordingly, the Motion is **DENIED** in its entirety.

Plaintiff to give notice.

12.	**30-2024-01372227** **Cheng vs. Fang**	**1. Motion for Summary Judgment and/or Adjudication** Defendants DENNY YEN-KAI FANG, D.D.S. and JULIA HUAMEI WU FANG move this Court for Summary Judgment as to plaintiff Jack Cheng's entire complaint, or in the alternative, summary adjudication on plaintiff's first cause of action for Medical Malpractice, second cause of action for Battery, and third cause of action for Negligence. Said Motion is **DENIED** in its entirety. Procedurally, the Motion is defective. Defendants fail to comply with CRC, Rule 3.1350(b) requiring that "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." Initially, the moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of *material* fact. [*Aguilar v. Atlantic Richfield Co.* (2001) 25 C4th 826, 850.] A defendant moving for summary judgment must "show" that *either:* • one or more elements of the "cause of action … *cannot be established*"; OR • there is a *complete defense* to that cause of action. [CCP § 437c(p)(2).] Once defendants meet this burden, the *burden shifts to plaintiff* to prove the existence of a triable issue of fact regarding that element of its cause of action or that defense. If plaintiff is unable to do so, defendants are entitled to judgment as a matter of law. [*Saelzler v. Advanced Group 400* (2001) 25 C4th 763, 780-781; *Consumer Cause, Inc. v. SmileCare* (2001) 91 CA4th 454, 468 (citing text)] Here, the operative complaint, the Second Amended Complaint, was filed on 7/2/2024 alleging: 1. MEDICAL MALPRACTICE (Against Dr. Denny Fang DDS); 2. BATTERY (Against Dr. Denny Fang DDS); and 3. NEGLIGENCE (Against Defendant Julia Huamei Wu Fang). **Issue #1: Plaintiff's Cause Of Action For Dental Malpractice Fails Because Defendant Dr. Fang's Treatment Of Plaintiff Met The Standard Of Care** The elements of a medical malpractice cause of action are: (1) duty of professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between negligent conduct and resulting injury; and (4) actual loss or damage resulting from professional's negligence. [*Avivi v. Centro Medico Urgente Med. Ctr*. (2008) 159 Cal.App.4th 463.] In this instance, Defendants argue Dr. Fang's treatment of Plaintiff met the standard of care. To that end, Defendants submit the declaration of expert Barry Vilkin, D.M.D. who is a **dentist** licensed to practice dentistry in the State of California and has been in practice for approximately 40 years. He also received his Certificate of Advanced Graduate Study in **Endodontics** and a Master of Science in Dentistry (Endodontics) from Boston University in 1984. (Vilkin Decl. ¶1.) In support of his declaration he has, "reviewed the treatment chart, notes, and x-rays in this matter pertaining to the care and treatment rendered by Dr. Fang and his staff to the plaintiff, as well as Dr. Fang's and Mrs., Fang's

declaration in connection with this motion, and reviewed the treatment records, photos, and x-rays, from the plaintiff's treatment with the prior treater, Pierce Aesthetics, and subsequent treater Aaron Salimnia, D.D.S. at Boutique Endodontics, and plaintiff's Second Amended Complaint." (Id.¶2.)

In ¶ 5 &6 , Dr. Vilkin declares, "Dr. Fang appropriately addressed the plaintiff's pain complaints with treatment breaks and additional anesthesia," and "Dr. Fang appropriately attempted to remove the old non-precious metal cast post-and-core using his dental handpiece, special burs coated with diamonds, and an ultrasonic handpiece specifically designed to facilitate removing permanently cemented posts … and the use of the dental handpiece and diamond-coated burs is … within the standard of care…" and "the use of a reverse crown tapper in this clinical situation was appropriate and within the standard of care." (Id.) He also sets forth Dr. Fang's decision to terminate the root canal re-treatment was appropriate and within the standard of care. (Id.¶7.)
Ultimately, he opines, "Based upon my many years of experience as an endodontist and my review of the records, declaration and radiographs of tooth number 14, it is my expert medical opinion to a reasonable degree of medical probability, that the root canal re-treatment performed by Dr. Fang on July 25, 2023 was performed within the standard of care, even though it was eventually recommended that the tooth be extracted." (Id.¶8.)

Dr. Vilkin sets forth his qualifications and reasoned explanation for his opinion. [See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 525.] Finally, copies of the medical records reviewed by Dr. Vilkin have been properly authenticated in the Declaration of Denny Fang ¶2; and therefore; comply with *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743. [ROA 62, 64.]

However, although *at first blush* it would appear Defendant sustained his initial, substantive burden, upon close inspection of the SAC, it does **not** appear Defendants' motion properly framed the issues from the pleadings.

Dr. Vilkin discusses:

- Pain complaints
- Use of handpiece (tapper)
- Ultimate termination of procedure

The pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. [*Laabs v. City of Victorville* (2008) 163 CA4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co*. (2010) 181 CA4th 60, 74—"the pleadings determine **the scope of relevant issues** on a summary judgment motion." The moving party's evidence **must be directed to the claims or defenses raised in the pleadings.** [*Keniston v. American Nat'l Ins. Co.* (1973) 31 CA3d 803, 812.] The moving party must show that the undisputed facts, when applied to the issues framed by the pleadings, entitle the moving party to judgment. [*Juge v. County of Sacramento* (1993) 12 CA4th 59, 66; see also *Hedayati v. Interinsurance Exchange of Automobile Club* (2021) 67 CA5th 833, 846—**defendant who does not address an issue in its summary judgment motion that was raised in plaintiff's complaint fails to meet its initial burden of showing plaintiff's action has no merit.**]

In the SAC, Plaintiff does not refer to the "tapper" directly, but does complain of the excessive hammering "with some metal instrument" (SAC¶¶17, 18, 19.) Plaintiff also

refers to the pain in his mouth after the procedure was terminated, "While Dr. Fang had finally ceased the painful procedure, he left Plaintiff with metal from the old filling cutting into the inner surface of Plaintiff's mouth and his tongue, causing significant bleeding inside Plaintiff's mouth." (SAC¶20.) Finally, while he does not discuss a "referral" specifically, he pleads that "Defendant Dr. Fang asked Plaintiff to find someone else to extract the tooth" (Id.¶20) and thereafter abandoned him. (Id¶¶21, 31.)

As such, the SAC seems to frame the lack of standard of care as: 1) use of force with metal instrument 2) dismissal of Plaintiff with metal cutting his mouth 3) abandonment of Plaintiff after the procedure.

As to the above, Defendant's expert, Dr. Vilkin, only addresses the use of the tapper. While he addresses the standard of ceasing the procedure **generally**, he does not address stopping the procedure, leaving Plaintiff in a state of pain with metal scraping his mouth, and failing to refer Plaintiff even after telling him he needed to find someone else to extract the tooth.

As such, after scrutiny of the SAC and the expert declarations, it does not appear that Defendant sustained its initial, substantive burden. Therefore, the motion is **DENIED** as to Issue 1.

Issue #2: Plaintiff's Causes Of Action For Dental Malpractice Fails Because Defendant Dr. Fang's Treatment Of Plaintiff Did Not Cause Him To Suffer Injury.

Defendant argues that Dr. Vilkin opines that, to a reasonable degree of medical probability, there was no negligent treatment by Dr. Fang that caused the plaintiff to suffer any injury because the declaration and records of Dr. Fang and plaintiff's prior and subsequent treaters, demonstrate that Dr. Fang appropriately attempted the root canal re-treatment on tooth number 14, but decided it was not in the plaintiff's best interest to complete the re-treatment which would have required more drilling and removal of tooth structure, further compromising the structural integrity of the tooth. (SSUMF No. 21)

However, again, because Defendant's expert did not adequately address the standard of care issues (pain caused by exposed metal in mouth upon cessation of treatment and failure to refer Plaintiff to another provider), Defendant has not sustained its burden on this issue as well.

Motion is **DENIED as to Issue 2.**

Issue #3: Plaintiff's Battery Cause of Action Fails Because Plaintiff Consented To The Procedure And Consent Was Not Withdrawn Before Termination Of Treatment.

Defendant argues, "…the basis for the plaintiff's battery claim is essentially that Dr. Fang hammered on his tooth more than plaintiff expected and that Dr. Fang did not complete the root canal treatment." (Motion page 16:9-11.)

However, as alleged in the SAC¶¶18, 19, 20 that is not the basis for the plaintiff's battery. Rather, it is that Plaintiff stated he could not do this anymore, thereby withdrawing his consent. But Defendant does not address that claim in the motion.

Rather he just cites to *Conte v. Girard Orthopaedic Surgeons Medical Group, Inc*. (2003) 107 Cal.App.4th 1260 for the proposition that there was no battery when the doctor did less, not more, than what he was authorized to do during surgery (referring to stopping the procedure).

While Defendant argues, "Dr. Fang, and the plaintiff himself, admitted that Dr. Fang paused when he complained of pain and administered additional anesthesia to address his subjective complaints. (SSUMF No. 28)" (Motion page 17:4-5), he fails to address the allegation of withdrawn consent to the procedure either in reference to fact or law.

As such, again, Defendant fails to sustain his burden and the Motion is **DENIED as to Issue 3.**

Issue #4 [erroneously called #2]: Plaintiff's Causes Of Action For Negligence Fails Because Defendant Julia Fang's Treatment Of Plaintiff Met The Standard Of Care And Did Not Cause Injury

Plaintiff pleads:

> 55. When Plaintiff walked out of the small surgery room, Plaintiff asked Defendant Julia Huamei Wu Fang and another nurse Laura if he could get some treatment for the ongoing bleeding in his mouth? Defendant Julia Huamei Wu Fang replied, "No, leave!"
> 56. In refusing to help Plaintiff after he was abandoned by Dr. Fang, Defendant Julia Fang breached the duty of care she owed to Plaintiff as Dr. Fang's medical assistant/office manager, by failing to provide a reasonable level of care comparable to that which another medical assistant/office manager would do under similar circumstances.

[SAC¶¶55, 56.]

The elements of a negligence cause of action are (1) the existence of a duty, (2) a breach of that duty, (3) injury to the plaintiff caused by the defendant's breach, and (4) actual damages. *Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 567. To prevail in a negligence action, a plaintiff must show that the defendant owed a legal duty, the defendant breached that duty, and the breach **proximately caused injury** to the plaintiff. *Romero v. Superior Court* (2001) 89 Cal.App.4th 1068, 1078.

Defendant argues she did not proximately cause injury to Plaintiff because, "by the time that the plaintiff had his interaction with Mrs. Fang after Dr. Fang terminated the root canal re-treatment procedure, the treatment had already been terminated and there was no further treatment, discussion, or questions to be answered that were warranted or required from Dr. Fang and his staff, including Mrs. Fang. (SSUMF No. 38)." (Motion page 19:22-26.) However, Defendants again, fail to address the salient facts pled in the SAC which is that his mouth was still bleeding after he was allegedly abandoned by Dr. Fang; and instead of assisting Plaintiff she allegedly yelled at him to leave.

Even if Defendant sustained its burden, Plaintiff appears to have created a triable issue of material fact by arguing "Julia Fang's refusal to render reasonable assistance was a substantial factor in prolonging Plaintiff's suffering. Immediate application of gauze, reassessment by the dentist, and proper stabilization could have reduced bleeding,

		curtailed pain, and mitigated the additional trauma from sharp metal edges. Instead, Plaintiff was forced to self-manage while symptomatic, worsening his condition and requiring additional medical attention elsewhere (AUF 56-59).” (Opp page 17:4-9). [Notably, it is unclear if an office manager has a duty to do any of these things, however, Defendant does not make any explicit arguments relating to duty.] For these reasons, the **Motion is DENIED as to Issue 4**. Plaintiff’s Objections (ROA 138) are **Overruled**, *except* as to declaration of Julia Fang which are **sustained**. Defendants’ Objections (ROA 144) are **Sustained**. **Plaintiff to give notice.**
13.	**30-2023-01337546** **De Lara vs. Jose’s Saavedra Garden Service**	**1. Motion for Judgment on the Pleadings** Plaintiff, Manuel De Lara, moves for an order granting judgment on the pleadings as to the entire Complaint. Initially, though filed one day late, the Court will consider Plaintiff’s counsel’s declaration regarding the requests and attempts to meet and confer. Plaintiff’s counsel’s declaration provides that on February 2, 2026, Plaintiff’s counsel called Defendants at 714-418-7918 and left them a voicemail in Spanish to call counsel back so that they could meet and confer regarding the motion for judgment on the pleadings, that after 4 business days Plaintiff’s counsel had not heard back from them, and on February 9, 2026, Plaintiff’s counsel called them “again, and again leaving a detailed message in Spanish” but as of the date of the declaration, neither Defendant Jose Luis Saavedra nor Defendant Remedios Esmeralda Flores Angeles have made any attempts to return Plaintiff’s counsel’s call. (ROA 122, Declaration of Steven A. Alexander, ¶¶ 2-4.) The motion remains unopposed. A plaintiff may move for judgment on the pleadings on the grounds that “the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc. §438(b)(1), (c)(1)(A).) The motion may be made as to the entire complaint or as any of the causes of action stated therein, or the entire answer or one or more of the affirmative defenses set forth in the answer. (Code Civ. Proc. § 438(c)(2)(A)-(B).) The grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d); *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999 (“*Cloud*”).) Factual allegations are accepted as true and are given a liberal construction. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.) Extrinsic evidence is not considered on a motion for judgment on the pleadings. (*Cloud, supra,* 67 Cal.App.4th at p. 999.) “A motion for judgment on the pleadings is equivalent to a demurrer and is governed by the same standard of review. All material facts which were properly pleaded are deemed true,

but not contentions, deductions, or conclusions of fact or law." (*Mack v. State Bar of California* (2001) 92 Cal.App.4th 957, 961.) "In addition to the facts pleaded, we may consider matters which may be judicially noticed, including a party's admissions or concessions that can not reasonably be controverted. (*Pang v. Beverly Hospital, Inc., supra,* 79 Cal.App.4th at pp. 989-990.) We may take judicial notice of the records of a California court. (Evid. Code, § 452, subd. (d).)" (*Ibid.*; *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5 [the court may consider matters properly subject to judicial notice on a nonstatutory motion for judgment on the pleadings].)

"Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission. [Citations.] Facts established by pleadings as judicial admissions are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted by the party whose pleadings are used against him or her." (*Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746, internal citations and quotations omitted.) In civil actions, "pleadings" are defined as "complaints, demurrers, answers, and cross-complaints." (*Ibid.*; Code Civ. Proc., § 422.10.)

Here, Plaintiff's Motions to Deem Requests for Admission Admitted as against Defendants Jose Luis Saavedra and Remedios Esmeralda Flora Angeles were granted. Therefore, Plaintiff's Requests for Admission, Set One, as against these defendants were deemed admitted,

The Verified Complaint, asserts four causes of action: (1) Failure to Provide Meal and Rest Breaks; (2) Unpaid Overtime; (3) Failure to Pay Timely Wages Due at Termination; and (4) Failure to Provide Accurate Wage Statements.

As to the first cause of action for Failure to Provide Meal and Rest Breaks, Plaintiff alleges that he did not voluntarily or willfully waive meal and rest periods, that Defendants did not provide, permit, or authorize Plaintiff to take meal and rest periods and violated Labor Code sections 226.7 and 512, and that as a proximate and legal result, Plaintiff accrued wages for missed meal and rest breaks of approximately $7,680. (Verified Complaint, ¶¶ 11-14.)

As to the second cause of action for unpaid overtime compensation, Plaintiff alleges that from March 1, 2022, through June 9, 2023, Plaintiff worked approximately 69 hours per week for which Plaintiff received weekly compensation from the Defendants by cash in the approximate amount of $810; that Plaintiff was improperly classified as an exempt employee; that Plaintiff is entitled to the unpaid balance of the full amount of the overtime compensation, interest, reasonable attorney's fees, and costs of suit pursuant to Labor Code section 1194(a); that Plaintiff should have received at least approximately $1,190 per week for the work performed by Plaintiff during the time period, and was underpaid approximately $380 per week; and that Plaintiff is entitled to recover at least $24,320 in approximate unpaid balance of overtime compensation by Defendants. (Verified Complaint, ¶¶ 19-21, 23.) Plaintiff prays for damages in the sum of $7,680 plus interest for the first cause of action, and for unpaid overtime wages of at least $24,320 plus interest, plus at least $15,000 in reasonable attorney's fees and costs for the second cause of action. (Prayer to Verified Complaint, ¶¶ 1-2.)

By way of the deemed admissions, Defendants admit that Plaintiff worked and their employee from March 1, 2022 through June 9, 2023; that during this time period, Plaintiff worked 11.5 hours per day, 6 days per week; that Plaintiff was never allowed any rest breaks during the time that he was employed by Defendants; that Defendants willfully failed to

properly compensate Plaintiff for overtime hours he worked for Defendants; that Defendants willfully failed to properly compensate Plaintiff for untaken rest breaks while he worked for Defendants; and that as a result of Defendants' willful failure to properly compensate Plaintiff during this time period, they owe Plaintiff the sum of $32,000. (See Plaintiffs' Request for Judicial Notice, Exs. 2 and 3, Request for Admissions, Set One, to Defendants, Nos. 1-6.) Defendants additionally admit that as a result of their willful failure to properly compensate Plaintiff, Defendants owe Plaintiff $3,200 in interest, as well as $15,000 in attorney's fees in the prosecution of this action. (*Id.*, Nos. 8, 10.)

Based on the foregoing judicial admissions, Plaintiff shows that the Verified Complaint states facts sufficient to constitute the first cause of action for failure to provide meal and rest breaks and second cause of action for unpaid overtime compensation, and that Plaintiff is entitled to the sum of $32,000 for the first two causes of action, as well as is entitled to $3,200 in interest, and $15,000 in attorney's fees, such that the answer, which consists of denials, and certain admissions, does not state facts sufficient to constitute a defense to the first and second causes of action.

As to the third cause of action for failure to timely pay wages due at termination, Plaintiff alleges that Defendants willfully failed to timely pay Plaintiff all of his wages due for work performed and that this failure continued through the time in which Plaintiff quit or was discharged from his employment with Defendants; that Defendants violated Labor Code sections 201 and 202; that Plaintiff is entitled to compensation for all forms of wages earned; that more than 30 days has passed since Plaintiff left Defendants' employment and has not received payment; and that as a result of Defendants' willful conduct in not paying all earned wages, Plaintiff is entitled to 30 days' wages as a premium wage or penalty under Labor Code section 203 in the sum of $3,467. (Verified Complaint, ¶¶ 28, 31-33.) Plaintiff prays for penalty damages in the sum of $3,467 pursuant to Labor Code section 203 for the third cause of action. (Prayer to Verified Complaint, ¶ 3.)

In addition to the admissions above, Defendants admit that as a result of Defendants' willful failure to properly compensate Plaintiff, Defendants owe him the sum of $3,467 in wait-time penalties under Labor Code section 203. (See Plaintiffs' Request for Judicial Notice, Exs. 2 and 3, Request for Admissions, Set One, to Defendants, No. 7.)

Based on the foregoing judicial admissions, Plaintiff shows that the Verified Complaint states facts sufficient to constitute the third cause of action for failure to timely pay wages due at termination such that Plaintiff is entitled to wait-time penalties, and that the answer, which consists of denials and certain admissions, does not state facts sufficient to constitute a defense to the third cause of action.

Finally, as to the fourth cause of action for failure to provide accurate wage statements under Labor Code section 226(a), Plaintiff alleges that Defendants failed to provide Plaintiff with "accurate itemized statements" while Plaintiff was employed by Defendants because the wage statement provided to Plaintiff, among other things, falsely understated the gross wages, understated the total hours worked, understated the net wages earned, and understated the number of hours worked at each hourly rate such that Plaintiff is owed $4,000 in penalties for multiple failures to provide an accurate wage statement, as well as costs and reasonable attorney's fees. (Verified Complaint, ¶¶ 36-38.) Plaintiff prays for penalty damages in the sum of $4,000 pursuant to Labor Code section 226(e), plus at least $15,000 in reasonable attorney's fees and costs for the fourth cause of action. (Prayer to Verified Complaint, ¶ 4.)

		In addition to the admissions set forth above, Defendants admit that as a result of Defendants' willful failure to provide accurate wage statements to Plaintiff, Defendants owe him the sum of $4,000 in penalties under Labor Code sections 2226(a) and 226(e)(1). (See Plaintiffs' Request for Judicial Notice, Exs. 2 and 3, Request for Admissions, Set One, to Defendants, No. 9.) Based on the foregoing judicial admissions, Plaintiff shows that the Verified Complaint states facts sufficient to constitute the fourth cause of action for failure to provide accurate wage statements such that Plaintiff is entitled to penalties under Labor Code section 226(e), and that the answer, which consists of denials and certain admissions, does not state facts sufficient to constitute a defense to the third cause of action. Further, in sum, Defendants admit that as a result of their willful failure to properly compensate Plaintiffs, Defendants owe Plaintiff a total sum of $57,667, which includes unpaid or underpaid wages, wait-time penalties, interest, failure to provide accurate wage statements to Plaintiff and attorney's fees. (See Plaintiffs' Request for Judicial Notice, Exs. 2 and 3, Request for Admissions, Set One, to Defendants, No. 11.) Based on all of the above, the Court **GRANTS** the motion for judgment on the pleadings as to Defendants Jose Luis Saavedra and Remedios Esmeralda Flores Angeles. **Plaintiff to give notice.**
14.	**30-2024-01390409** **Davidson vs. Caro**	**1. Motion for Summary Judgment and/or Adjudication** **2. Status Conference** Defendant Agnes Maramba, NP ("Defendant") moves for summary judgment as to the first cause of action of medical malpractice as alleged by Plaintiff Denise Davison ("Plaintiff") in the First Amended Complaint. Plaintiff opposes the motion. The Motion for Summary Judgment is DENIED. **I. AUTHORITY FOR MEDICAL MALPRACTICE MOTION FOR SUMMARY JUDGMENT** The elements of a cause of action for professional negligence (medical malpractice) are: "(1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) "The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606–607, as modified (Nov. 29, 1999).) "[E]xpert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen." (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741.) In fact, "California courts have incorporated the expert evidence requirement into their standard for summary

judgment in medical malpractice cases." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607, *as modified (Nov. 29, 1999)*.)

"When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606-607; *Webster v. Claremont Yoga* (2018) 26 Cal.App.5th 284, 289.)

An expert's opinion must be based on authenticated hospital records. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) "Without those hospital records, and without testimony providing for authentication of such records, [the expert's] declaration had no evidentiary basis" and therefore "no evidentiary value." (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) "[E]xpert opinions ... are worth no more than the reasons and factual data upon which they are based." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607.)

"A properly qualified expert may offer an opinion relating to a subject that is beyond common experience, if that expert's opinion will assist the trier of fact." (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742–743 [citing Evid. Code, § 801, subd. (a)].) "Even so, the expert opinion may not be based on assumptions of fact that are without evidentiary support or based on factors that are speculative or conjectural, for then the opinion has no evidentiary value and does not assist the trier of fact." (*Ibid*.)

Still, expert declarations need not be "a model of specificity" in order "to raise a triable issue of fact." (*Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 506.)

II. EVIDENCE SUBMITTED

A. Defendant carried her Initial Burden

Here, Defendant makes two arguments in support of her motion for summary judgment: (1) Defendant did not breach the applicable standard of care and (2) Defendant did not, to a reasonable degree of medical probability, proximately cause or contribute to Plaintiff's injuries.

In support of these arguments, Defendant proffered the Declaration of Holly Viloria, NP along with Plaintiff's medical records. (See ROA 71, Ex. 2.)

Holly Viloria, NP is a board certified family psychiatric/mental health nurse practitioner, who is licensed in the State of California. (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 1.) To form her opinion Nurse Practitioner Viloria reviewed that "operative Complaint and the records of Denise Davison from Progeny Psychiatric Clinic." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 4.)

Nurse Practitioner Viloria opined that "[t]he evaluations, history, documentation, prescriptions, treatment, and plan, and all related care and treatment rendered to Denise Davison by Agnes Maramba, NP were well within the standard of care at all times." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 81.)

Nurse Practitioner Viloria also stated:

> "Regarding the prescribing and titrating of Ativan/Lorazepam in a patient such as Ms. Davison, the standard of care requires a provider to gradually wean the patient from Ativan/Lorazepam utilizing either lower per-pill dosage or decreasing the incidence of tablets taken per day. The standard of care involves a gradual and individualized approach based on several factors, including the specific benzodiazepine being used, the half-life of the benzodiazepine/pharmacokinetics, the dose, duration of use, individual patient response, and presence of any underlying conditions. Successful titration also is dependent on the patient following the plan, appropriate medication compliance, as well as utilizing additional treatment recommendations such as therapy." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 83.)

> "In view of my education, training, and experience, as well as the documents and records regarding NP Maramba's care and treatment of Denise Davison, NP Maramba appropriately and within the standard of care recommended and initiated the weaning/titration of Ativan/Lorazepam for Ms. Davison. NP Maramba's actions/recommendations regarding gradually decreasing Ms. Davison's dosage and/or rate, prescribing alternative medications, and recommending therapy, were all appropriate and within the standard of care." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 84.)

> "The actions by NP Maramba throughout her care and treatment of Ms. Davison were appropriate and within the standard of care in gradually titrating/weaning Ms. Davison's Ativan/Lorazepam prescription, as well as the prescribing of alternative medications and therapies." (ROA 87, Ex. 2, Declaration of Holly Viloria, NP, ¶ 84.)

> "Based upon the extensive documentation, as well as my education, training, and experience, NP Maramba appropriately referred the patient to seek another approved provider or higher level of care, and appropriately advised regarding emergency care if needed. This is based upon Ms. Davison's extensively documented failure to follow the agreed plan, medications, therapies, follow-up appointments, and related treatment." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 91.)

In support of Defendant's argument that she did not, to a reasonable degree of medical probability, proximately cause or contribute to Plaintiff's injuries, Defendant's expert states that Plaintiff had a well-documented history of not complying with her plan of care and "self-discontinuing (or failing to start) her medications." In particular, Defendant's expert testified the following as to Defendant's argument that she did not, to a reasonable degree of medical probability, proximately cause or contribute to Plaintiff's injuries:

> "The alleged actions/omissions of Defendant Agnes Maramba, NP in the provision of care and treatment to Plaintiff Denise Davison did not, to a reasonable degree of medical probability, cause or contribute to any of Plaintiff's alleged injuries. There is also no medically approved term or diagnosis criteria for "Benzodiazepine withdrawal brain injury," as stated in the Complaint." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 93.)

> "There is no causal connection between the actions of Defendant Agnes Maramba, NP, and Ms. Davison's claimed Ativan withdrawal injuries or any related damages." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 94.)

> "As stated extensively above, NP Maramba appropriately and within the standard of care provided the guidance and recommendations for Ms. Davison to gradually taper off of her Ativan, including decreasing her ingestion of the same, alternative medications, therapies/counseling, and additional follow-up appointments." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 95.)

> "Ms. Davison followed these recommendations and medication taper for a period of time, but then demonstrated a pattern of either refusal or a failure to follow it, that was extensively documented by NP Maramba." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 96.)

> "In sum, and in view of the extensive documentation and records, to a reasonable degree of medical probability, no action or omission of NP Maramba caused or contributed to Plaintiff Denise Davison's injuries." (ROA 71, Ex. 2, Declaration of Holly Viloria, NP, ¶ 97.)

Based on the evidence above, Defendant carried her initial burden.

B. Plaintiff's Evidence Creates a Triable Issue of Material Fact

In opposition, Plaintiff presents expert testimony from Gabriella Greco, D.O. Plaintiff's expert is "a Doctor of Osteopathy, licensed to practice medicine in the state of Connecticut" and a "Registered Pharmacist licensed in the state of Illinois. I am Board Certified by the American Board of Psychiatry and Neurology" (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 1.)

In the beginning of Plaintiff's expert's testimony, the expert Gabriella Greco, D.O. testified:

> "Based upon my education, training, experience, and qualifications, I am familiar with the degree of knowledge and skill ordinarily possessed by reputable physicians practicing medicine in the United States including in the State of California, and I have extensive knowledge of current treatment guidelines for the management of anxiety disorders, depressive disorders, insomnia, and somatic symptoms and related disorders as described in the Diagnostic and Statistical Manual of Mental Disorders, Fifth Edition (DSM-5). I have a thorough understanding of the link between pain syndromes and psychopathology. I have successfully treated patients with traumatic brain injuries and pain syndromes through medications as well as through nonpharmacologic therapies. I have a strong background in pharmacology and am thoroughly familiar with all aspects of drug therapy. I am aware that the failure to possess the requisite knowledge and skill to practice medicine safely and effectively, or the failure to exercise the requisite knowledge and skill, is a violation of the standard of care for physicians." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 1.)

Plaintiff's expert testified also that "no reasonably prudent psychiatric clinician can justify initiating or continuing a medication with known risks of dependence, tolerance, and

withdrawal" without the patient's "comprehensive psychiatric history, including prior diagnoses, prior medication trials, responses, and adverse effects." (ROA 107, Declaration of Gabriella Greco, D.O., ¶¶ 7-8.) Plaintiff's expert further testified that Defendant did not obtain this information prior to prescribing the medication at issue in the Complaint. (*Ibid*.)

She further testified the following – all of which analyzes Defendant's conduct through the standard of care for that of a prescribing clinician:

- "The prescribing pattern reflected in the Denise Davison record demonstrates insufficient understanding of anxiety disorders, benzodiazepine pharmacology, and the predictable consequences of long-term use." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 9.)

- "In reviewing the initial psychiatric evaluation, I noted that the nurse practitioner used Axis-based diagnoses. This is not a minor clerical issue. The DSM-5, published in 2013, eliminated the multiaxial diagnostic system because it lacked scientific validity and artificially separated psychiatric and medical conditions. By 2022, Axis I–V diagnoses had been obsolete for nearly a decade. Any adequately trained psychiatric practitioner would know this. Continued use of DSM-IV axes in 2022 reflects outdated training, deficient familiarity with current psychiatric standards, and raises serious concern regarding the accuracy and reliability of the clinical assessment." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 10.)

- "When a clinician assumes care of a patient with long-term benzodiazepine use, the standard of care requires: Assessment of physiologic dependence, Recognition of withdrawal risk, Implementation of a structured, individualized taper, or Referral to appropriate specialty care capable of managing withdrawal safely." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 10.)

- "Instead, NP Maramba: Reduced pill counts without a documented taper protocol; Failed to provide stabilization despite escalating withdrawal symptoms; Failed to implement any recognized benzodiazepine taper strategy; Substituted sedating antipsychotics (e.g., quetiapine) to suppress withdrawal-related symptoms without addressing the underlying physiologic dependence." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 10.)

- "In my expert medical opinion, there was no legitimate indication for lorazepam in this patient. The prescribing, monitoring, and discontinuation of lorazepam by Nurse Maramba, deviated from accepted psychiatric standards of care. The use of obsolete diagnostic frameworks, lack of supervision, and misunderstanding of withdrawal further demonstrate incompetence and a failure to meet the standard of care in managing this patient." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 17.)

- "Dr. Ahmed and Nurse Practitioner Caro's prolonged prescribing of lorazepam over seven (7) years without documented indication or informed consent, and their failure to safely taper the patient, together with Dr. Kellogg and Nurse Practitioner Maramba's failure to implement or supervise a medically appropriate taper, constituted multiple deviations from the accepted standard of psychiatric care." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 18.)

- "To a reasonable degree of medical probability, these deviations were a substantial factor in causing Ms. Davison's benzodiazepine dependence, acute withdrawal, protracted neurologic symptoms, repeated emergency care, detox admission, and functional impairment." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 19.)

Based on the opinions above, the Motion for Summary Judgment is DENIED. The Court finds that Plaintiff's expert testimony creates triable issues of material fact as to whether Defendant (1) breached the applicable standard of care and (2) caused or contributed to Plaintiff's injuries, to a reasonable degree of medical probability.

C. Defendant takes Issue with Plaintiff's Expert Declaration but the Issues do not Prevent Denying the Motion

Defendant takes issue with Plaintiff's expert declaration. Defendant argues that Plaintiff's expert declaration is inappropriate because Plaintiff's expert does not hold the same license as Defendant and therefore is unqualified to render an opinion on the standard of care that applies to nurse practitioners.

It is also notable that Plaintiff's expert is not licensed in the State of California. Plaintiff's expert is "a Doctor of Osteopathy, licensed to practice medicine in the state of Connecticut" and "a Registered Pharmacist licensed in the state of Illinois." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 1.)

Evidence Code section 720 governs expert witness testimony. Section 720 states:

> "(a) A person is qualified to testify as an expert if he has special knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates. Against the objection of a party, such special knowledge, skill, experience, training, or education must be shown before the witness may testify as an expert.
> (b) A witness' special knowledge, skill, experience, training, or education may be shown by any otherwise admissible evidence, including his own testimony." (Evid. Code, § 720.)

"Opinion testimony from a properly qualified witness is generally necessary to demonstrate the elements for medical malpractice claims." (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310.)

"When a defendant health care practitioner moves for summary judgment and supports his motion with an expert declaration that his conduct met the community standard of care, the defendant is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310.)

1. An Expert does not need to be Licensed in the State of California to opine as to the Standard of Care

It is of no consequence that Defendant's expert is not licensed and does not practice medicine in California. (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310–311.)

"Today, neither the Evidence Code nor Supreme Court precedent *requires* an expert witness to have practiced in a particular locality before he or she can render an opinion in an ordinary medical malpractice case." (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310–311 [internal quotations omitted].)

Borrayo v. Avery (2016) 2 Cal.App.5th 304, 311 states:

> "For example, in *Avivi,* the appellate court concluded an orthopedist who lived and practiced in Israel was sufficiently qualified to provide an opinion about the standard of care in Southern California for the treatment of an arm fracture despite never being board certified by any United States medical board, nor providing any treatment to patients in the United States. (*Avivi, supra,* 159 Cal.App.4th at p. 471, 71 Cal.Rptr.3d 707.)
>
> The court reasoned "the appropriate test for expert qualification in ordinary medical malpractice actions is whether the expert is familiar with circumstances similar to those of the respondents; familiarity with the standard of care in the particular community where the alleged malpractice occurred, while relevant, is generally not requisite...." (*Avivi,* at p. 465, 71 Cal.Rptr.3d 707.) The court also observed that "[g]eographical location may be a factor considered in making that determination, but, by itself, does not provide a practical basis for measuring similar circumstances." (*Avivi*, at p. 470, 71 Cal.Rptr.3d 707.) In sum, while locality is a circumstance that may be considered, it is not determinative."

2. An Expert does not need to hold the same license as the Defendant at issue but must establish Sufficient Knowledge of the Standard of Care.

A nurse's conduct should not "—as a matter of law—be measured by the standard of care of a physician or surgeon." (*Fein v. Permanente Medical Group* (1985) 38 Cal.3d 137, 150.)

Still, this does not prevent a physician or surgeon from opining on whether the nurses conduct fell below the standard of care applicable to the nurse based on the duties that the nurse was performing. Rather, "[w]here a duly licensed and practicing physician has gained knowledge of the standard of care applicable to a specialty in which he is not directly engaged but as to which he has an opinion based on education, experience, observation or association with that specialty, his opinion is competent." (*Ammon v. Superior Court* (1988) 205 Cal.App.3d 783, 790–791 [citing *Evans v. Ohanesian* (1974) 39 Cal.App.3d 121, 128, 112 Cal.Rptr. 236; see generally, 3 Witkin, Cal. Evidence (3d ed. 1986), §§ 1846–1847, pp. 1801–1804].)

Ammon v. Superior Court (1988) 205 Cal.App.3d 783, 790–791 states:

> Contrariwise, a holder of one license may be qualified to opine concerning the standard of care applicable to the holder of a different license. (*Chadock v. Cohn* (1979) 96 Cal.App.3d 205, 208–209, 157 Cal.Rptr. 640.) " 'To qualify a witness as a medical expert it must be shown that the witness (1) has the required professional knowledge, learning and skill of the subject under ****752** inquiry sufficient to qualify him to speak with authority ***791** on the subject, and (2) is familiar with the standards required of physicians under similar circumstances.

> [Citations.] ... The determinative test ... is whether the witness has disclosed sufficient knowledge of the subject to entitle his opinion to go to the jury. [Citations.]" (*Agnew v. City of Los Angeles* (1950) 97 Cal.App.2d 557, 565–566, 218 P.2d 66; accord *Mann v. Cracchiolo* (1985) 38 Cal.3d 18, 37–39, 210 Cal.Rptr. 762, 694 P.2d 1134; *Brown v. Colm* (1974) 11 Cal.3d 639, 645–647, 114 Cal.Rptr. 128, 522 P.2d 688; *Cline v. Lund* (1973) 31 Cal.App.3d 755, 765–767, 107 Cal.Rptr. 629; Evid.Code, § 720.) "Where a duly licensed and practicing physician has gained knowledge of the standard of care applicable to a specialty in which he is not directly engaged but as to which he has an opinion based on education, experience, observation or association with that specialty, his opinion is competent." (*Evans v. Ohanesian* (1974) 39 Cal.App.3d 121, 128, 112 Cal.Rptr. 236; see generally, 3 Witkin, Cal. Evidence (3d ed. 1986), §§ 1846–1847, pp. 1801–1804.)

Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 969–970 stands for the proposition that a testifying expert must establish that the expert possesses "certification, expertise or relevant knowledge of the standards of care attributable to" the defendant at issue.

"To the extent [an expert's] expertise is subject to question, we note 'if a witness has disclosed sufficient knowledge of the subject to entitle his opinion to go to the jury, the question of the degree of his knowledge goes to the weight of his testimony rather than to its admissibility.' " (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 313.)

Here, every time that Plaintiff testified as to whether Defendant's conduct was sufficient, she did so under the standard of care for "prescribing clinicians." Plaintiff's expert testimony clearly states that she is testifying as to the standard of care for "prescribing clinicians." Plaintiff does not limit her testimony to physicians but rather more broadly states that she is testifying as to clinicians who are permitted to prescribe.

Accordingly, the Court finds that Plaintiff's expert is qualified to testify as to the medical opinions in her declaration and that the declaration creates a triable issue of material facts as to the standard of care that Plaintiff received from Defendant as well as the cause of Plaintiff's injuries.

3. Records that Plaintiff's Expert Reviewed were Authenticated in Defendant's Moving Papers

Next, Defendant argues that Plaintiff's expert testimony has not authenticated the records that she relies on.

An expert's opinion must be based on authenticated hospital records. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) "Without those hospital records, and without testimony providing for authentication of such records, [the expert's] declaration had no evidentiary basis" and therefore "no evidentiary value." (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) "[E]xpert opinions ... are worth no more than the reasons and factual data upon which they are based." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607.)

Here, Plaintiff's declaration expressly states that she relied on those records submitted by defense. Specifically, Plaintiff's expert testified:

> "I have reviewed the following materials to prepare for my role as a standard of care and causation expert in this case:
> • Plaintiff Denise Davison's declaration and symptom timeline;
> • The prescribing and discontinuation chronology reflected in the parties' filings;
> • Psychiatric visit notes, medication records, and addenda excerpts referenced by the defense;
> • Deposition testimony excerpts as summarized in the record; and
> • My education, training, and generally accepted psychiatric standards and guidelines." (ROA 107, Declaration of Gabriella Greco, D.O., ¶ 4.)

As such, the Court finds that the records reviewed in forming the expert opinion were appropriately authenticated – Defendant's expert authenticated the medical records reviewed.

III. DEFENDANT'S SEPARATE STATEMENT

The Court notes that Defendants' separate statement fails to separately identify the causes of action or issues to be determined by summary judgment. Rather, Defendants listed 102 undisputed material facts under one heading, which is entitled "MOVING PARTY'S UNDISPUTED MATERIAL FACTS AND SUPPORTING EVIDENCE."

Code of Civil Procedure section 437c states:

> The motion for summary judgment shall be granted if all the papers submitted show that **there is no triable issue as to any material fact** and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c) [emphasis added].)

Code of Civil Procedure section 437c further states:

> "The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken. **The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed.** Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b) [emphasis added].)

California Rules of Court, rule 3.1350(d)(1) states:

> "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:

		(A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Based on the authority above, the separate statement shall identify each cause of action, claim for damages, issue of duty, or affirmative defense and which material facts establish why Defendants should prevail on the motion. As section 437c states, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact. Thus, if one material fact is disputable, then the issue fails. Here, Defendants' separate statement fails to separately identify the causes of action or issues to be determined by summary judgment. Rather, Defendants listed 102 undisputed material facts under one heading, which is entitled "MOVING PARTY'S UNDISPUTED MATERIAL FACTS AND SUPPORTING EVIDENCE." Thus, if one material fact is found to be disputed, then the entire MSJ must be denied. In sum, the Motion for Summary Judgment is **DENIED**. **Plaintiff to give notice.**
15.	**30-2024-01379003** **Dib vs. Daher**	**1. Motion for Summary Judgment and/or Adjudication** Defendant Hien Nguyen ("Defendant") moves for summary judgment or adjudication in her favor as to the: (1) first cause of action for fraudulent transfers in violation of Civil Code section 3439.04, (2) second cause of action for conspiracy to fraudulently convey property, (3) third cause of action for aiding and abetting fraudulent conveyance of property, (4) fourth cause of action for accounting, and (5) fifth cause of action for imposition of a constructive trust and/or preliminary and permanent injunction, and accounting. Plaintiffs Joseph Dib and R&R Life is Amazing ("Plaintiffs") oppose the motion. The Motion is **DENIED**. The Court agrees with Plaintiffs that Exhibit F to the Declaration of Kyle DiNicola is inadmissible as presented. The Declaration of Kyle DiNicola states that Exhibit F "is a true and correct copy of the records my office received from Seacliff Appraisal in response to the Deposition Subpoena I issued on or about April 4, 2025. Seacliff Appraisal's response to the Deposition Subpoena includes a copy of its appraisal for the real property located at 8217 Poinsettia Drive, Buena Park, California 90620." *This is insufficient to properly authenticate the appraisal and qualify the appraisal for the business records exception to the hearsay rule.*

"Authentication of a writing means ... the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is." (Evid. Code, § 1400.) "Authentication of a writing is required before it may be received in evidence." (*Id.*, § 1401, subd. (a).)

For example, in *Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 49, the court held that an attorney did not properly authenticate the document at issue because "the attorney does not declare that she prepared, is a party to, is the custodian of records of, or otherwise has personal knowledge sufficient to authenticate, the documents from which the copies were made." (*Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 49-50.)

Likewise, to properly authenticate a document the declaration purporting to authenticate the document must (1) "explain the basis for the attorney's personal knowledge and (2) "establish that the documents from which the copies were made are in fact the documents they are purported to be." (*Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 49-50.)

Moreover, "[i]n order for business records to" qualify "for admission as an exception to the hearsay rule, either the person who created the documents, or an authorized custodian of the documents, or some 'other qualified witness' must testify 'as to the identity and mode of preparation of the documents.' " (*Sierra Managed Asset Plan, LLC. v. Hale* (2015) 240 Cal.App.4th Supp. 1, 8.) The qualified witness must "possesses sufficient personal knowledge of the "identity and ... mode of ... preparation" of documents for purposes of the business records exception." (*Ibid.*)

Pursuant to Evid. Code, § 1271:

> "Evidence of a writing made as a record of an act, condition, or event is not made inadmissible by the hearsay rule when offered to prove the act, condition, or event if:
> (a) The writing was made in the regular course of a business;
> (b) The writing was made at or near the time of the act, condition, or event;
> (c) The custodian or other qualified witness testifies to its identity and the mode of its preparation; and
> (d) The sources of information and method and time of preparation were such as to indicate its trustworthiness." (Evid. Code, § 1271.)

Here, Exhibit F is not accompanied by the requisite affidavit or declaration from the authorized custodian of the records or other qualified witness who has authority to certify the records received from the subpoena. (Evid. Code, § 1561.) Such an affidavit is necessary to properly admit the records received by business subpoena from Seacliff Appraisal. Defendant's counsel does not have the requisite personal knowledge to authenticate the appraisal prepared by Seacliff Appraisal.

This means that Defendant's Undisputed Material Fact 29 is disputed. Without the Seacliff Appraisal, Defendant cannot establish that she purchased the Subject Property for a reasonably equivalent value. As such, the Motion is DENIED.

The Court notes that Defendant's separate statement contains 48 undisputed material facts. Theses 48 undisputed material facts are not separated or divided by issue, defense, or cause of action. Thus, in order for Defendant to succeed on her motion, all 48 facts listed must be undisputed.

Code of Civil Procedure section 437c states:

> The motion for summary judgment shall be granted if all the papers submitted show that **there is no triable issue as to *any* material fact** and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c) [emphasis added].)

Code of Civil Procedure section 437c further states:

> "The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken. **The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed.** Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b) [emphasis added].)

California Rules of Court, rule 3.1350(d)(1) states:

> "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:
>
> (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and
>
> (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1320, subd.(d)(1).)

Based on the authority above, the separate statement shall identify each cause of action, claim for damages, issue of duty, or affirmative defense and which material facts establish why Defendants should prevail on the motion.

As section 437c states, the separate statement shall only set forth material facts and there must be no triable issue as to *any* material fact. Accordingly, if one material fact is disputable, then the issue fails.

Here, Defendants' separate statement fails to separately identify the causes of action, defenses, or issues to be determined by summary judgment. Rather, Defendants listed 48

		undisputed material facts under one heading that lists the five issues presented. Thus, if one material fact is found to be disputed, then the entire Motion for Summary must be denied. As explained ABOVE, this is the case, therefore the Motion for Summary Judgment is **DENIED** in its entirety. **Plaintiffs to give notice.**